

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

-----X
ANGEL VALENTIN,

Plaintiff,

-against-

AMENDED
COMPLAINT

10 CV 5195

JURY TRIAL DEMANDED

ECF CASE

THE CITY OF NEW YORK, P.O. HARRY BONHOMME,
Shield No. 28127, Individually and in his Official Capacity,
P.O. JUAN MORA, Shield No. 11885, Individually and in his
Official Capacity, P.O. JOSE SANTIAGO Shield No. 15912,
Individually and in his Official Capacity, P.O. EDWIN PEREZ
Shield No. 12365 Individually and in his Official Capacity
and P.O.s "JOHN DOE" #1-10, Individually and in their Official
Capacities, (the name John Doe being fictitious, as the true names
are presently unknown),

Defendants.
-----X

Plaintiff, ANGEL VALENTIN, by his attorneys, Cohen & Fitch LLP, complaining of the
defendants, respectfully alleges as follows:

PRELIMINARY STATEMENT

1. Plaintiff brings this action for compensatory damages, punitive damages and
attorney's fees pursuant to 42 U.S.C. § 1983 and 42 U.S.C. § 1988 for violations of his civil rights,
as said rights are secured by said statutes and the Constitutions of the State of New York and the
United States.

JURISDICTION

2. This action is brought pursuant to 42 U.S.C. § 1983 and 42 U.S.C. § 1988, and the
Fourth and Fourteenth Amendments to the United States Constitution.

3. Jurisdiction is founded upon 28 U.S.C. §§ 1331, 1343 and 1367.

VENUE

4. Venue is properly laid in the Southern District of New York under 28 U.S.C. § 1391(b), in that this is the District in which the claim arose.

JURY DEMAND

5. Plaintiff respectfully demands a trial by jury of all issues in this matter pursuant to Fed. R. Civ. P. 38(b).

PARTIES

6. Plaintiff is a Hispanic American male and was at all relevant times a resident of the City and State of New York.

7. Defendant, the City of New York, was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

8. Defendant, the City of New York, maintains the New York City Police Department, a duly authorized public authority and/or police department, authorized to perform all functions of a police department as per the applicable sections of the New York State Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, the City of New York.

9. At all times hereinafter mentioned, the individually named defendants P.O. HARRY BONHOMME, P.O. JUAN MORA, P.O. JOSE SANTIAGO, P.O. EDWIN PEREZ, and P.O.s “JOHN DOE” #1-10, were duly sworn police officers of said department and were acting under the supervision of said department and according to their official duties.

10. At all times hereinafter mentioned, the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or City of New York.

11. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant, City of New York.

12. Each and all of the acts of the defendants alleged herein were done by said defendants while acting in furtherance of their employment by defendant, City of New York.

FACTS

April 29, 2010 Arrest

13. On or about April 29, 2010, at approximately 4:10 p.m., plaintiff ANGEL VALENTIN was lawfully present in the vicinity of Walton Avenue and East 169th Street, in the County of the Bronx, in the City and State of New York.

14. Plaintiff was talking to a friend while he was waiting for his wife to come out of the grocery store when defendant police officers suddenly accosted him.

15. Thereafter, defendants immediately handcuffed plaintiff's arms behind his back and took him to the precinct.

16. At the precinct, defendants strip searched plaintiff but did not find drugs or any other contraband in plaintiff's possession.

17. Notwithstanding the lack of any drug-related evidence, defendants charged plaintiff ANGEL VALENTIN with Criminal Sale of Marijuana in the Second and Fourth Degree, and Unlawful Possession of Marijuana.

18. Plaintiff ANGEL VALENTIN had not purchased, possessed, or sold any narcotics at any time on April 29, 2010.

19. In connection with this arrest, defendants filled out false and misleading police reports and forwarded these reports to prosecutors in the District Attorney's Office.

20. Thereafter, defendants repeatedly gave false and misleading testimony regarding the

facts and circumstances of plaintiff's arrest.

21. As a result of this unlawful arrest, plaintiff ANGEL VALENTIN spent approximately twenty-eight (28) hours in jail.

22. As a result of his unlawful arrest, plaintiff ANGEL VALENTIN spent approximately two (2) months making court appearances in connection with his unlawful arrest and malicious prosecution.

23. On or about June 17, 2010 all charges relating to plaintiff ANGEL VALENTIN's April 29, 2010 arrest were dismissed.

24. As a result of the foregoing, plaintiff ANGEL VALENTIN sustained, *inter alia*, loss of liberty, emotional distress, mental anguish, shock, fright, apprehension, embarrassment and humiliation, and deprivation of his constitutional rights.

May 11, 2010 Arrest

25. On or about May 11, 2010, at approximately 5:15 p.m., plaintiff ANGEL VALENTIN was lawfully present in the vicinity of East 169th and Walton Avenue in the County of the Bronx, in the City and State of New York.

26. Plaintiff had just entered a Chinese restaurant to order food for him and his family, when he was suddenly accosted by the defendant police officers.

27. Thereafter, defendants handcuffed plaintiff's arms behind his back and took him to the precinct.

28. At the precinct, defendants strip searched plaintiff but did not find drugs or any other contraband in plaintiff's possession.

29. Notwithstanding the lack of any drug-related evidence, defendants charged plaintiff ANGEL VALENTIN with Criminal Sale of Marijuana in the Fourth Degree, Criminal Possession of

Marijuana in the Fifth Degree and Unlawful Possession of Marijuana.

30. Plaintiff ANGEL VALENTIN had not purchased, possessed, or sold any narcotics at any time on May 11, 2010.

31. In connection with this arrest, defendants filled out false and misleading police reports and forwarded these reports to prosecutors in the District Attorney's Office.

32. Thereafter, defendants repeatedly gave false and misleading testimony regarding the facts and circumstances of plaintiff's arrest.

33. As a result of this unlawful arrest, plaintiff ANGEL VALENTIN spent approximately twenty-four (24) hours in police custody.

34. As a result of his unlawful arrest, plaintiff ANGEL VALENTIN spent approximately five (5) months making court appearances in connection with his unlawful arrest and malicious prosecution.

35. On or about October 12, 2010 all charges relating to plaintiff ANGEL VALENTIN's May 11, 2010 arrest were dismissed.

36. As a result of the foregoing, plaintiff ANGEL VALENTIN sustained, *inter alia*, loss of liberty, emotional distress, mental anguish, shock, fright, apprehension, embarrassment and humiliation, and deprivation of his constitutional rights.

July 7, 2010 Arrest

37. On or about July 7, 2010, at approximately 7:45 p.m., plaintiff ANGEL VALENTIN was lawfully present in the vicinity of Grand Concourse and East 169th in the County of the Bronx, in the City and State of New York.

38. Plaintiff was on his way to his mother in law's home when he was stopped by a passerby who asked him for directions.

39. All of a sudden plaintiff and the passerby were accosted by the defendant police officers.

40. Thereafter, defendants immediately handcuffed plaintiff's arms behind his back and took him to the precinct.

41. At the precinct, defendants strip searched plaintiff but did not find drugs or any other contraband in plaintiff's possession.

42. Notwithstanding the lack of any evidence of a crime or violation, defendants charged plaintiff ANGEL VALENTIN with Disorderly Conduct and Resisting Arrest.

43. At no point on July 7, 2010 was plaintiff acting in a disorderly manner, nor did he resist a lawful arrest.

44. As a result of this unlawful arrest, plaintiff ANGEL VALENTIN spent approximately twenty-four (24) hours in jail before the District Attorney declined to prosecute on grounds that the subsection of Disorderly Conduct the defendant officers charged plaintiff with was unconstitutional.

45. As a result of the foregoing, plaintiff ANGEL VALENTIN sustained, *inter alia*, loss of liberty, emotional distress, mental anguish, shock, fright, apprehension, embarrassment and humiliation, and deprivation of his constitutional rights.

**FIRST CLAIM FOR RELIEF ARISING FROM THE APRIL 29, 2010 ARREST
DEPRIVATION OF FEDERAL CIVIL RIGHTS UNDER 42 U.S.C. § 1983**

46. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "45" with the same force and effect as if fully set forth herein.

47. All of the aforementioned acts of defendants, their agents, servants and employees were carried out under the color of law.

48. All of the aforementioned acts deprived plaintiff ANGEL VALENTIN of the rights,

privileges and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. §1983.

49. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, with all the actual and/or apparent authority attendant thereto.

50. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and rules of the City of New York and the New York City Police Department, all under the supervision of ranking officers of said department.

51. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of his/her respective municipality/authority, which is forbidden by the Constitution of the United States.

52. As a result of the foregoing, plaintiff ANGEL VALENTIN sustained, *inter alia*, loss of liberty, emotional distress, mental anguish, shock, fright, apprehension, embarrassment and humiliation, and deprivation of his constitutional rights.

**SECOND CLAIM FOR RELIEF ARISING FROM THE APRIL 29, 2010 ARREST
FALSE ARREST UNDER 42 U.S.C. § 1983**

53. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "52" with the same force and effect as if fully set forth herein.

54. As a result of defendants' aforementioned conduct, plaintiff ANGEL VALENTIN was subjected to an illegal, improper and false arrest by the defendants and taken into custody and caused to be falsely imprisoned, detained, confined, incarcerated and prosecuted by the defendants in criminal proceedings, without any probable cause, privilege or consent.

55. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, and he was put in fear for his safety, was humiliated and subjected to handcuffing, and other physical restraints, without probable cause.

**THIRD CLAIM FOR RELIEF ARISING FROM THE APRIL 29, 2010 ARREST
MALICIOUS PROSECUTION UNDER 42 U.S.C. § 1983**

56. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "55" with the same force and effect as if fully set forth herein.

57. Defendants misrepresented and falsified evidence before the District Attorney.

58. Defendants did not make a complete and full statement of facts to the District Attorney.

59. Defendants withheld exculpatory evidence from the District Attorney.

60. Defendants were directly and actively involved in the initiation of criminal proceedings against plaintiff ANGEL VALENTIN.

61. Defendants lacked probable cause to initiate criminal proceedings against plaintiff ANGEL VALENTIN.

62. Defendants acted with malice in initiating criminal proceedings against plaintiff ANGEL VALENTIN.

63. Defendants were directly and actively involved in the continuation of criminal proceedings against plaintiff ANGEL VALENTIN.

64. Defendants lacked probable cause to continue criminal proceedings against plaintiff ANGEL VALENTIN.

65. Defendants acted with malice in continuing criminal proceedings against plaintiff ANGEL VALENTIN.

66. Defendants misrepresented and falsified evidence throughout all phases of the criminal proceedings.

67. Notwithstanding the perjurious and fraudulent conduct of defendants, the criminal proceedings were terminated in plaintiff ANGEL VALENTIN's favor on or about June 17, 2010, when all charges against him were dismissed.

68. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, and he was put in fear for his safety, was humiliated and subjected to handcuffing, and other physical restraints, without probable cause.

**FOURTH CLAIM FOR RELIEF ARISING FROM THE APRIL 29, 2010 ARREST
DENIAL OF CONSTITUTIONAL RIGHT TO FAIR TRIAL
UNDER 42 U.S.C. § 1983**

69. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "68" as if the same were more fully set forth at length herein.

70. Defendants created false evidence against plaintiff ANGEL VALENTIN.

71. Defendants forwarded false evidence and false information to prosecutors in the District Attorney's office.

72. Defendants misled the grand jury and the prosecutors by creating false evidence against plaintiff ANGEL VALENTIN and thereafter providing false testimony throughout the criminal proceedings.

73. In creating false evidence against plaintiff ANGEL VALENTIN, in forwarding false evidence and information to prosecutors, and in providing false and misleading testimony, defendants violated plaintiff's constitutional right to a fair trial under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

74. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of

time, and he was put in fear for his safety, was humiliated and subjected to handcuffing, and other physical restraints, without probable cause.

**FIFTH CLAIM FOR RELIEF ARISING FROM THE APRIL 29, 2010 ARREST
UNLAWFUL AND UNREASONABLE SEARCH UNDER 42 U.S.C. § 1983**

75. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered “1” through “74” with the same force and effect as if fully set forth herein.

76. As a result of the forgoing plaintiff ANGEL VALENTIN was subjected to unreasonable strip searches in violation of his due process rights as set forth in the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

77. As a result of the aforesaid conduct by defendants, plaintiff’s person and possessions were illegally and improperly searched without consent, a valid warrant, probable cause, privilege or consent, in violation of his constitutional rights as set forth in the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

**SIXTH CLAIM FOR RELIEF ARISING FROM THE APRIL 29, 2010 ARREST
MUNICIPAL LIABILITY**

78. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs “1” through “77” as if the same were more fully set forth at length herein.

79. Defendants arrested and incarcerated plaintiff ANGEL VALENTIN in the absence of any evidence of criminal wrongdoing, notwithstanding their knowledge that said arrest and incarceration would jeopardize plaintiff’s liberty, well-being, safety and constitutional rights.

80. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers and officials, with all the actual and/or apparent authority attendant thereto.

81. The acts complained of were carried out by the aforementioned individual defendants

in their capacities as police officers and officials pursuant to the customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department, all under the supervision of ranking officers of said department.

82. The aforementioned customs, policies, usages, practices, procedures and rules of the

83. City of New York and the New York City Police Department include, but are not limited to, the following unconstitutional practices:

- a) arresting individuals regardless of probable cause in order to inflate the officer's arrest statistics;
- b) fabricating evidence against innocent persons erroneously arrested during buy-and- bust operations;
- c) arresting innocent persons wrongfully apprehended during buy-and-bust operations; and
- d) arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing.
- e) conducting intrusive strip searches of arrested individuals regardless of particularized suspicion.

84. The existence of the aforesaid unconstitutional customs and policies may be inferred from repeated occurrences of similar wrongful conduct, as documented in the following civil rights actions filed against the City of New York:

- **Julio Diaz v. City of New York**, United States District Court, Southern District of New York, 08 CV 6399;
- **Frank Douglas v. City of New York**, United States District Court, Southern District of New York, 03 CV 6475;
- **Darnell Flood v. City of New York**, United States District Court, Southern District of New York, 03 CV 10313;
- **Theodore Richardson v. City of New York, et al**, United States District Court, Eastern District of New York, 02 CV 3651;

- **Phillip Stewart v. City of New York**, United States District Court, Southern District of New York, 05 CV 2375;
- **Benjamin Taylor v. City of New York**, United States District Court, Eastern District of New York, 01 CV 5750;
- **Horace Taylor v. City of New York**, United States District Court, Southern District of New York, 03 CV 6477;
- **Angel Vasquez v. City of New York**, United States District Court, Eastern District of New York, 05 CV 3552;
- **Alvin Williams v. City of New York**, United States District Court, Southern District of New York, 05 CV 4013;

85. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department constituted a deliberate indifference to the safety, well-being and constitutional rights of plaintiff ANGEL VALENTIN.

86. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by ANGEL VALENTIN as alleged herein.

87. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by plaintiff ANGEL VALENTIN as alleged herein.

88. As a result of the foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department, plaintiff ANGEL VALENTIN was incarcerated unlawfully for approximately twenty-eight (28) hours and all charges were dismissed on or about June 17, 2010.

89. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the constitutional rights of plaintiff ANGEL VALENTIN.

90. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of plaintiff ANGEL VALENTIN's constitutional rights.

91. All of the foregoing acts by defendants deprived plaintiff ANGEL VALENTIN of federally protected rights, including, but not limited to, the right:

- A. Not to be deprived of liberty without due process of law;
- B. To be free from seizure and arrest not based upon probable cause;
- C. To be free from unwarranted and malicious criminal prosecution;
- D. Not to have cruel and unusual punishment imposed upon him; and
- E. To receive equal protection under the law.

**SEVENTH CLAIM FOR RELIEF ARISING FROM THE MAY 11, 2010 ARREST
DEPRIVATION OF FEDERAL CIVIL RIGHTS UNDER 42 U.S.C. § 1983**

92. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "91" with the same force and effect as if fully set forth herein.

93. All of the aforementioned acts of defendants, their agents, servants and employees were carried out under the color of law.

94. All of the aforementioned acts deprived plaintiff ANGEL VALENTIN of the rights, privileges and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. §1983.

95. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, with all the actual and/or apparent authority attendant thereto.

96. The acts complained of were carried out by the aforementioned individual defendants

in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and rules of the City of New York and the New York City Police Department, all under the supervision of ranking officers of said department.

97. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of his/her respective municipality/authority, which is forbidden by the Constitution of the United States.

98. As a result of the foregoing, plaintiff ANGEL VALENTIN sustained, *inter alia*, loss of liberty, emotional distress, mental anguish, shock, fright, apprehension, embarrassment and humiliation, and deprivation of his constitutional rights.

**EIGHT CLAIM FOR RELIEF ARISING FROM THE MAY 11, 2010 ARREST
FALSE ARREST UNDER 42 U.S.C. § 1983**

99. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "98" with the same force and effect as if fully set forth herein.

100. As a result of defendants' aforementioned conduct, plaintiff ANGEL VALENTIN was subjected to an illegal, improper and false arrest by the defendants and taken into custody and caused to be falsely imprisoned, detained, confined, incarcerated and prosecuted by the defendants in criminal proceedings, without any probable cause, privilege or consent.

101. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, and he was put in fear for his safety, was humiliated and subjected to handcuffing, and other physical restraints, without probable cause.

**NINTH CLAIM FOR RELIEF ARISING FROM THE MAY 11, 2010 ARREST
MALICIOUS PROSECUTION UNDER 42 U.S.C. § 1983**

102. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "101" with the same force and effect as if fully set forth herein.

103. Defendants misrepresented and falsified evidence before the District Attorney.

104. Defendants did not make a complete and full statement of facts to the District Attorney.

105. Defendants withheld exculpatory evidence from the District Attorney.

106. Defendants were directly and actively involved in the initiation of criminal proceedings against plaintiff ANGEL VALENTIN.

107. Defendants lacked probable cause to initiate criminal proceedings against plaintiff ANGEL VALENTIN.

108. Defendants acted with malice in initiating criminal proceedings against plaintiff ANGEL VALENTIN.

109. Defendants were directly and actively involved in the continuation of criminal proceedings against plaintiff ANGEL VALENTIN.

110. Defendants lacked probable cause to continue criminal proceedings against plaintiff ANGEL VALENTIN.

111. Defendants acted with malice in continuing criminal proceedings against plaintiff ANGEL VALENTIN.

112. Defendants misrepresented and falsified evidence throughout all phases of the criminal proceedings.

113. Notwithstanding the perjurious and fraudulent conduct of defendants, the criminal proceedings were terminated in plaintiff ANGEL VALENTIN's favor on or about June 17, 2010, when all charges against him were dismissed.

114. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, and he was put in fear for his safety, was humiliated and subjected to handcuffing, and other

physical restraints, without probable cause.

**TENTH CLAIM FOR RELIEF ARISING FROM THE MAY 11, 2010 ARREST
DENIAL OF CONSTITUTIONAL RIGHT TO FAIR TRIAL
UNDER 42 U.S.C. § 1983**

115. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "114" as if the same were more fully set forth at length herein.

116. Defendants created false evidence against plaintiff ANGEL VALENTIN.

117. Defendants forwarded false evidence and false information to prosecutors in the District Attorney's office.

118. Defendants misled the grand jury and the prosecutors by creating false evidence against plaintiff ANGEL VALENTIN and thereafter providing false testimony throughout the criminal proceedings.

119. In creating false evidence against plaintiff ANGEL VALENTIN, in forwarding false evidence and information to prosecutors, and in providing false and misleading testimony, defendants violated plaintiff's constitutional right to a fair trial under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

120. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, and he was put in fear for his safety, was humiliated and subjected to handcuffing, and other physical restraints, without probable cause.

**ELEVENTH CLAIM FOR RELIEF ARISING FROM THE MAY 11, 2010 ARREST
UNLAWFUL AND UNREASONABLE SEARCH UNDER 42 U.S.C. § 1983**

121. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "120" with the same force and effect as if fully set forth herein.

122. As a result of the forgoing plaintiff ANGEL VALENTIN was subjected to unreasonable strip searches in violation of his due process rights as set forth in the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

123. As a result of the aforesaid conduct by defendants, plaintiff's person and possessions were illegally and improperly searched without consent, a valid warrant, probable cause, privilege or consent, in violation of his constitutional rights as set forth in the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

**TWELFTH CLAIM FOR RELIEF ARISING FROM THE MAY 11, 2010 ARREST
MUNICIPAL LIABILITY**

124. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "123" as if the same were more fully set forth at length herein.

125. Defendants arrested and incarcerated plaintiff ANGEL VALENTIN in the absence of any evidence of criminal wrongdoing, notwithstanding their knowledge that said arrest and incarceration would jeopardize plaintiff's liberty, well-being, safety and constitutional rights.

126. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers and officials, with all the actual and/or apparent authority attendant thereto.

127. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers and officials pursuant to the customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department, all under the supervision of ranking officers of said department.

128. The aforementioned customs, policies, usages, practices, procedures and rules of the

129. City of New York and the New York City Police Department include, but are not

limited to, the following unconstitutional practices:

- a) arresting individuals regardless of probable cause in order to inflate the officer's arrest statistics;
- b) fabricating evidence against innocent persons erroneously arrested during buy-and- bust operations;
- c) arresting innocent persons wrongfully apprehended during buy-and-bust operations; and
- d) arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing.
- e) conducting intrusive strip searches of arrested individuals regardless of particularized suspicion.

130. The existence of the aforesaid unconstitutional customs and policies may be inferred from repeated occurrences of similar wrongful conduct, as documented in the following civil rights actions filed against the City of New York:

- **Julio Diaz v. City of New York**, United States District Court, Southern District of New York, 08 CV 6399;
- **Frank Douglas v. City of New York**, United States District Court, Southern District of New York, 03 CV 6475;
- **Darnell Flood v. City of New York**, United States District Court, Southern District of New York, 03 CV 10313;
- **Theodore Richardson v. City of New York, et al**, United States District Court, Eastern District of New York, 02 CV 3651;
- **Phillip Stewart v. City of New York**, United States District Court, Southern District of New York, 05 CV 2375;
- **Benyamin Taylor v. City of New York**, United States District Court, Eastern District of New York, 01 CV 5750;
- **Horace Taylor v. City of New York**, United States District Court, Southern District of New York, 03 CV 6477;
- **Angel Vasquez v. City of New York**, United States District Court, Eastern District

of New York, 05 CV 3552;

- **Alvin Williams v. City of New York**, United States District Court, Southern District of New York, 05 CV 4013;

131. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department constituted a deliberate indifference to the safety, well-being and constitutional rights of plaintiff ANGEL VALENTIN.

132. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by ANGEL VALENTIN as alleged herein.

133. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by plaintiff ANGEL VALENTIN as alleged herein.

134. As a result of the foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department, plaintiff ANGEL VALENTIN was incarcerated unlawfully for approximately twenty-four (24) hours and all charges were dismissed on or about October 12, 2010.

135. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the constitutional rights of plaintiff ANGEL VALENTIN.

136. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of plaintiff ANGEL VALENTIN's constitutional rights.

137. All of the foregoing acts by defendants deprived plaintiff ANGEL VALENTIN of federally protected rights, including, but not limited to, the right:

- A. Not to be deprived of liberty without due process of law;
- B. To be free from seizure and arrest not based upon probable cause;
- C. To be free from unwarranted and malicious criminal prosecution;
- D. Not to have cruel and unusual punishment imposed upon him; and
- E. To receive equal protection under the law.

**THIRTEENTH CLAIM FOR RELIEF ARISING FROM THE JULY 7, 2010 ARREST
DEPRIVATION OF FEDERAL CIVIL RIGHTS UNDER 42 U.S.C. § 1983**

138. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "137" with the same force and effect as if fully set forth herein.

139. All of the aforementioned acts of defendants, their agents, servants and employees were carried out under the color of law.

140. All of the aforementioned acts deprived plaintiff ANGEL VALENTIN of the rights, privileges and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. §1983.

141. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, with all the actual and/or apparent authority attendant thereto.

142. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and rules of the City of New York and the New York City Police Department, all under the supervision of ranking officers of said department.

143. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of his/her

respective municipality/authority, which is forbidden by the Constitution of the United States.

144. As a result of the foregoing, plaintiff ANGEL VALENTIN sustained, *inter alia*, loss of liberty, emotional distress, mental anguish, shock, fright, apprehension, embarrassment and humiliation, and deprivation of their constitutional rights.

**FOURTEENTH CLAIM FOR RELIEF ARISING FROM THE JULY 7, 2010 ARREST
FALSE ARREST UNDER 42 U.S.C. § 1983**

145. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "144" with the same force and effect as if fully set forth herein.

146. As a result of defendants' aforementioned conduct, plaintiff ANGEL VALENTIN was subjected to illegal, improper and false arrest by the defendants and taken into custody and caused to be falsely imprisoned, detained, confined, incarcerated and prosecuted by the defendants in criminal proceedings, without any probable cause, privilege or consent.

147. As a result of the foregoing, plaintiff's liberty were restricted for an extended period of time, and they were put in fear for their safety, were humiliated and subjected to handcuffing, and other physical restraints, without probable cause.

**FIFTEENTH CLAIM FOR RELIEF ARISING FROM THE JULY 7, 2010 ARREST
UNLAWFUL AND UNREASONABLE SEARCH UNDER 42 U.S.C. § 1983**

148. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "147" with the same force and effect as if fully set forth herein.

149. As a result of the foregoing plaintiff ANGEL VALENTIN was subjected to unreasonable strip searches in violation of his due process rights as set forth in the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

150. As a result of the aforesaid conduct by defendants, plaintiff's person and possessions were illegally, improperly, and unreasonably searched without a valid warrant, probable cause,

privilege, or consent in violation of his constitutional rights as set forth in the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

**SIXTEENTH CLAIM FOR RELIEF ARISING FROM THE JULY 7, 2010 ARREST
MUNICIPAL LIABILITY**

151. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered “1” through “150” with the same force and effect as if fully set forth herein.

152. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

153. The aforementioned customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department include, but are not limited to, the following unconstitutional practices:

- a) arresting individuals regardless of probable cause in order to inflate arrest statistics;
- b) arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing; and
- c) conducting intrusive strip searches of arrested individuals regardless of particularized suspicion.

154. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department constitute deliberate indifference to the safety, well-being and constitutional rights of plaintiff.

155. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by plaintiff as alleged herein.

156. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by plaintiff as alleged herein.

157. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating plaintiff's constitutional rights.

158. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of plaintiff ANGEL VALENTIN 's constitutional rights.

159. The acts complained of deprived plaintiff of his rights:

- A. Not to be deprived of liberty without due process of law;
- B. To be free from seizure and arrest not based upon probable cause;
- C. To be free from unlawful search;
- D. Not to have summary punishment imposed upon them; and
- E. To receive equal protection under the law.

160. As a result of the foregoing, plaintiff ANGEL VALENTIN is entitled to compensatory damages in the sum of one million dollars (\$1,000,000.00) and is further entitled to punitive damages against the individual defendants in the sum of one million dollars (\$1,000,000.00).

WHEREFORE, plaintiff ANGEL VALENTIN demands judgment in the sum of one million dollars (\$1,000,000.00) in compensatory damages, one million dollars (\$1,000,000.00) in punitive damages, plus attorney's fees, costs, and disbursements of this action.

Dated: New York, New York
November 30, 2010

BY: _____/S
Joshua P. Fitch (JF-2813)
Cohen & Fitch, LLP
Attorney for Plaintiff
225 Broadway, Suite 2700
New York, N.Y. 10007
(212) 374-9115